

Client #40

Represented client in an employment dispute faced with an injunction by former employer to enforce a non-compete agreement. Successfully argued that the non-compete was not enforceable and unnecessary to protect opposing party's business. The matter was resolved with a settlement agreement and dismissal without prejudice from the court.

Client #41

Represented a witness in an interview with the Attorney General Investigator and counsel in a sales tax reporting investigation by the Department of Revenue and Washington State Attorney General. The matter was successfully resolved.

Client #42

Represents the minority female leader of a twenty-five-year-old non-profit for alleged misuse of charitable funds in an Attorney General Office Civil Investigation. The minority-based charity had an influx of funds after the Black Lives Matter movement and the death of George Floyd, including a donation of 2 million dollars. The historical significance and value to the community of the recognizable charity are great. The outcome of the case will affect the entire community it exists in, as well as the thousands of children it has helped and currently is helping, as well as those in the future.

The significance of the case is the existence of charity and the threat of closing after 25 years plus of serving an underprivileged community. There are five lawyers working on the case representing multiple co-defendants. Kris and Costello Law Firm (CLF) took the lead and crafted and sought engagement in compliance for the organization. CLF put into place, at a huge effort and time commitment, much of it at a pro bono rate, sweeping changes working at a parrel level creating a corporate structure for the charity and creating new roles for the client that served the charity and suited the client and her strengths. Kris recognized that most of what was wrong had to do with the running of their business and used her strength as a small business owner as well as her legal prowess to solve their compliance issues. She even spent time at the organization in a very ground roots effort.

The case is still ongoing, but the most likely result will be the charity allowed to stay in business helping young people at risk from joining gangs, leaving school, and being trafficked. The client will most likely be able to keep her job. Which could be a benefit to her and the charity as she was the founder and has institutional knowledge and lifelong connections that keep the charity afloat. If she is not allowed to keep her job there is a question whether the charity will be sustainable. The significance of the case is that the work will likely keep the charity open;

without her it would have been closed. The dollar amount in question is significant, and also of significance is the possible loss to the community if the charity is closed.

The co-defendants included the corporation of the non-profit, the husband of CLF's client, and a consultant of non-profit corporations. Kris brought in the consultant as a show of her relationships and her understanding of the parrel and related matters going on involving corporations and charitable boards. Kris led the case with the five plus lawyers as co-counsel. The case was investigated by two senior Attorney General investigators and then referred for disposition directly to the Attorney General of Washington State.

Client #43

TJ

2. Represented the owners of a 20 million dollar per year trucking and transportation company that were being investigated by the Department of Energy for being involved either as a witness or as a possible target for misappropriation of products that were intended for a large civil engineering build, a massive river bridge in eastern Idaho. The case had co-defendants, a co-owner, and the corporation. CLF recognized the conflict and engaged co-counsel for the other possible parties involved. Kris recognized the possible conflict of interest between the two owners and the corporation. Kris led the case with the three parties, the two co-owners and the corporation. Kris successfully got the two owners and the corporation to work together and used her contracts from years before work with the investigators. The matter was complex and could have affected the 20 million dollars of revenue per year, because the corporation could have lost their ability to participate in government contracts. The Department of Energy then decided not look at the co-owners or the corporation as targets of the investigation and only view them as witnesses. The matter was significant because there was twenty million dollars at stake each year. The case was complex because of the co-defendants interplay. In the end the work up of the case also allowed the bad actor within the larger scheme to be more visible after extensive work on the evidence from the investigation.

Client #44

SK

3 Represented a defendant in a multi-defendant federal case involving an international computer company and alleged crimes totaling 270 million dollars of damage to victims. The client represented by CLF was one of the multi directors of an alleged criminal network involving computer fraud and complex computer coding theft of funds and identities internationally. Kris's client is in Spain and there are extradition issues. Kris summoned the help of international lawyers who were also interested in the extradition and speedy trial issues. Kris engaged an extradition specialist. Kris led a group of international lawyers to write an omnibus opinion. Kris will eventually present the omnibus opinion and a proposed motion to dismiss to the US Attorneys of the Western District of Washington office. The amicus brief addresses extradition

and the constitutional issues of right to a speedy trial and complex issues of when the protection is triggered during a multinational investigation. The case also involves issues including double jeopardy and constitutional rights such as the right to travel.

The case could set international precedent and affect the practices and procedures of the United States Attorney when dealing with multiple defendants in multiple countries on international matters. CLF is also highlighting the treatment of her co-defendants as opposed to the defendant she is representing. The significance of the case is the large dollar amount; the large amount of time the client is facing as potential consequence and the international effect this ruling could have on multiple cases in multiple countries. At issue is how defendants come to court and how defendants are treated internationally regarding their rights to a speedy trial.

Client #45

4. AH #1

Represented business owner of family-owned company doing millions of dollars of business per year in a parallel proceeding of criminal charges of embezzlement and identity fraud, while at the same time civil charges of misappropriation of funds and divesting of interests and partnership agreements were occurring. CLF first got the civil court to stay the matter –to move focus on the criminal proceeding. Kris then brought several motions to dismiss based on discovery violations and failure of the state court to properly charge the matter and abuse of processes. Kris also highlighted that in essence the matter was civil and could not be prosecuted criminally. She found another set of proceedings occurring, for the same parties in family court. She used conflicting and impeachment evidence from the family law case in the criminal motions to dismiss.

The state court prosecutor dismissed the motion on his own without even going to a hearing in front of the state court presiding judge. Kris had previously won discovery motions in front of this judge and the complaining witness had not complied with the discovery requirements. The case was completely dismissed.

Now Kris is representing the client in an abuse of process case against the parties at issue as well as defending the civil action and bringing counter claims surrounding the family-owned business. The significance of the case is that the client's charges were completely dismissed by the prosecution. The clearing of the criminal case was a strategy that helped allow focus on defending the civil case. The significance of the abuse of process case is that the tables have been turned, and now the client might receive a monetary settlement. There are also complex matters of arbitration. The dollar amount in question for the partnership dispute and lost wages and abuse of process is significant. There were multiple lawyers involved in the client's team for the criminal and civil cases, Kris has led all lawyers as first chair.

A#2

Client #46

5. Represented a bank employee of a large local bank, pre-charge, who was facing an investigation of bank robbery and money laundering. The total charge, of a theft of 400,000, and an inclusion of 40 counts is significant. Amplifying the case is his stature as a manager of the case, and his alleged breach of fiduciary duty. Kris worked with the client pre-charge to try to manage the client getting taken into custody and attempted a declination of charges. The client was not taken into custody. There were over 40 federal charges for bank robbery and money laundering. The case was ultimately turned over to the Federal public defender due to the client's inability to pay.

Client #46

6. Representing and advising a successful architect and small business owner in possible tax evasion case over the course of several years. To assist this client CLF is working with an expert in tax audits and investigations to best advise the client on the ongoing audit with tax regulators. The dollar amount of the investigation is nearly 100,000 and could be higher if the matter gains attention of other agencies. The significance of the matter is the amount owed as well as the ability to keep certain permits that will be required to do business in Washington state. The complexity is working with the tax regulations and an expert witness on taxation.

Client Matters:

Client #1

Represented a government contracting professional services business owner in a parallel criminal and licensing matter stemming from a personal conduct dispute involving alleged property trespass and false accusations. The matter carried significant collateral risks to the client's business, security clearance, and professional licensure. Coordinated with Big Law company counsel, local small firm counsel, and subject-matter attorneys to develop a comprehensive defense strategy. The matter was successfully resolved through presentation to the state prosecuting authority.

Client #2

Advising a business owner in a white-collar parallel proceeding involving active criminal charges and a stayed civil litigation matter. The case concerns allegations of embezzlement, fraud, and identity theft in the context of a dispute between business partners in a family-owned company. Engaged outside forensic and communications experts and collaborated with a mid-sized litigation firm for support with litigation and on indemnification, insurance, real estate, commercial, and defamation issues. Criminal matter remains pending.

Client #3 S/K

7 Counseling a business owner in a white-collar criminal matter involving alleged fraud and cybersecurity issues and parallel proceedings in multiple international jurisdictions. Working in coordination with outside counsel in other countries and consulting with small firm constitutional law experts. Matter is ongoing.

Client #4 TJS -

8 Representing a business owner under investigation by the U.S. Attorney's Office related to alleged False Claims Act violation and misuse of funds under the Paycheck Protection Program. The matter involves a civil investigative demand and carries potential licensing and criminal exposure. Providing representation in collaboration with outside small firm counsel. Investigation remains active.

Client #5

Serving as pool counsel at the request of Big Law company counsel to represent individual witnesses in a federal employment and immigration investigation involving overlapping administrative, civil, and criminal matters. Matter is pending.

Client #6

Acting as local counsel in a white-collar matter involving potential post-conviction litigation. Matter is currently pending.

Client #7

Advising a married couple, one a successful entrepreneur and the other a real estate business owner, on protecting their businesses, personal assets, professional licenses, and reputations considering potential legal exposure. Engagement is ongoing.

Client #8

Assisting a white-collar professional in post-conviction litigation related to international business activity. The matter involves coordination with Canadian immigration counsel and remains pending.

Client #9

Assisting a client with an out of district federal grand jury subpoena by the FBI to a national social media company for access to his social media account. Working with local, small law counsel. The matter is pending.

Client #10

Served as Local Counsel in a criminal investigation by the Environmental Protection Agency (EPA) and the Federal Bureau of Investigation and a United States District Court Grand Jury Investigation into violations of the Clean Air Act and Conspiracy to Commit Offense or Defraud the United States. Assisted with a Rule 40 Motion for the return of property seized outside the scope of a search warrant, raising objections, and responding to a Grand Jury Subpoena served on client and client's business and pre-indictment settlement discussions with the Government. Law Enforcement returned the bulk of the property to Counsel without litigation after successful negotiations.

Client #11

Represented a client whose company was a victim of a complicated phishing fraud scheme. Assisted the client with a referral to State and Federal law enforcement authorities, insurance

review, and responses to the bank and other victims to protect client's interests in recovering funds from the bank, managing liability, and leveraging insurance policies for full recovery.

Client #12

Assisted the client in responding to a subpoena duces tecum in a Washington Department of Financial Institution (DFI's) investigation into violations of security laws. This complex litigation involves potential liability in the DFI enforcement action, civil and criminal liability. The investigation is pending.

Client #13

Assisted white collar professional and business owner witnesses in protecting their legal interests during a criminal investigation. They are not involved in the investigation but are facing damages to their professional and personal reputations due to resulting online postings. The postings include references to unrelated real estate and employment matters suggesting civil action.

Client #14

Represented a white-collar professional and business owner working in a highly regulated industry in a criminal investigation. The matter triggered collateral and grave consequences for the client's professional credentials and business.

Client #15

Assisted client in an employee theft investigation at a small company in making a law enforcement referral and preparing a civil demand letter for damages. The client discovered employee malfeasance—sabotage of a contract with a large courier company—and later discovered conversion of the client's property, fraud, and theft.

Client #16

Represented client in a highly contentious civil matter involving allegations of fraud and theft. The client terminated an independent contractor upon detection of fraud and theft in 2022 and reported the matter to the police. Six months later, the client received a demand letter from the former independent contractor making claims against the business and the owner for conversion, wage violations, and defamation. They also claimed an ownership interest in the business. Successfully advocated for the Court to grant motion to dismiss the complaint for lack of service.

Client #17

Represented client in an employment dispute. The client received a demand letter alleging disability discrimination under the Americans with Disabilities Act and the Washington Law Against Discrimination, as well as violations of State and Federal Protective Leave Statutes. The potential matter settled favorably with no admission of wrongdoing.

Client #18

Represented client in a concurrent employment dispute and Labor and Industry Investigation. The client received a civil demand letter alleging gender discrimination, retaliation, wage violations, disability discrimination, and interference with sick leave. The matter involves parallel investigation by Labor and Industries, the Equal Opportunity Employment Commission, and a private demand for damages. The matter settled favorably without admission of wrongdoing and the government claims were withdrawn.

Client #19

Assisted business owners with legal compliance and risk management structures and processes related to employment, safety, corporate governance, and industry regulations.

Client #20

Represented a client in a high stakes and complicated ERISA matter involving a contested trustee compliance audit and investigation in two union collective bargaining contracts. The client faced potential civil and criminal liability and parallel federal and state court litigation. The audit matter was resolved by agreement of the parties, the federal court matter was dismissed, and the state matter was successfully resolved.

Client #21

Assisted client in a high stakes pre-litigation matter involving previously undisclosed claims of sexual misconduct by a medical professional alleged to have occurred over twenty years ago. The matter was successfully settled.

Client #22

Represented client in a high stakes criminal investigation on allegations of personal misconduct. The matter was successfully resolved through a decline of criminal charges.

Client #23

Co-counseled with a Big Law firm on a Medicaid Fraud and Potential False Claims investigation of billing irregularities and violations of the standard of care by a medical professional and their practice. The matter was successfully resolved after a hearing on the merits and the professional's participation in the Medicaid program was reinstated.

Client #24

Representing business owner in a complicated and contentious business dispute regarding an employee's claims against business owner and the business owner's counter claims of fraud, conversion of business funds, and malfeasance by employee. Internal investigation of financial issues is ongoing.

Client #25

Assisting in an employment dispute involving a medium-sized family-owned manufacturing and construction company faced with allegations of disability discrimination under the Americans with Disabilities Act and Washington Law Against Discrimination, as well as violation of State and Federal Protective Leave Statutes.

Client #26

Assisting in an employment dispute involving allegations of gender discrimination, retaliation, wage violations, disability discrimination, and interference with sick leave. The matter involves parallel investigation by Labor and Industries, Equal Opportunity Employment, and a private demand for damages.

Client #27

Represented client in a highly contentious Guardianship dispute involving concurrent investigations by outside agencies, an internal financial investigation, and three litigation matters in State Court, two of which were concurrent. Two matters were successfully dismissed, and one was favorably resolved.

Client #28

Advised client and Lead Counsel in a complex Conservatorship Proceeding involving potential civil and criminal liability.

Client #29

Represented a family-owned grocery business in a safety and wage investigation by the Department of Labor (DOL) for violations of child labor and safety laws. The matter was resolved after appeal through an Enhanced Compliance Agreement. Successfully negotiated DOL's agreement to issue a generic press release of an industry-wide misunderstanding of the law without naming the business directly.

Client #30

Represented construction company in a Washington Labor and Industry investigation for allegations of wage violations by mischaracterization of an employee as an independent contractor. Default judgment was appealed and removed to State Court, resulting in a favorable settlement of claim.

Client #31

Represented witness in a contentious business, estate, and family dispute regarding allegations of fraud, conversion, theft of trade secrets, state tax fraud, and civil conspiracy. Assisted witness navigate his Fifth Amendment privileges, the civil "negative inference" doctrine, and witness discovery requirements, and successfully protected him from further involvement in the dispute.

Client #32

Represented witness in criminal and grand jury investigation by the Internal Revenue Service (IRS) involving allegations of tax fraud and the sale of cigarettes on Tribal lands.

Client #33

Represented client in a concurrent estate and business dispute regarding allegations of breaching fiduciary duties, which triggered five concurrent administrative, criminal, and civil investigations. The matters were all favorably resolved through declines and dismissals.

Client #34

Advised and created compliance structures and systems for Human Resources and Safety for a large company.

Client #35

Represented client in an investigation by Labor and Industries involving alleged safety, environmental, and clean air violations. The matter was favorably resolved with no violation found after review.

Client #36

Represented grand jury witness facing multiple allegations of fraud against the government: conspiracy, mail fraud, wire fraud, etc.) and false statement to a government official in an investigation by the U.S. Department of Justice, NASA, and FBI. Successfully prevented client from becoming a target of the investigation directly before grand jury testimony.

Client #37

Advised client and corporate counsel in an investigation by the U.S. Department of Justice regarding allegations of kickbacks and false claims. This matter was resolved.

Client #38

Advised client in an investigation by the Securities and Exchange Commission (SEC) regarding alleged violation of the Securities Act of 1933. This matter was resolved.

Client #39

Represented client in an investigation by the Washington Department of Fish and Wildlife (WDFW) that expanded into multiple allegations of drug trafficking and business malfeasance against a target and witness. The matter was successfully resolved after responding with a civil action in State Court to return seized business and records. WDFW agreed to return the property without an admission of unlawfulness and dismissed the matter.